

24 CV 00498 The Other Woman And The Wife, LLC vs. Jacobs, Kristen SMW
Open

- Case Type:
CIVIL
- File Date
10/24/2024
- Action:
Other Civil
- Case Judge:
Wall, Stacy M
- Next Event:
05/01/2026

All InformationPartyDocketService RecordsEvent

Party Information

The Other Woman And The Wife, LLC
- Plaintiff

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DOB

Disposition

Disp Date

• Address
228 Montego Ky
Novato, CA 94949

Alias

Party Attorney
 - Attorney
Brandenburg, Margo S
 - Address
250 East Fifth Street Suite 2200
Cincinnati, OH 45202
 - Phone
 -
 - Attorney
Graber, Anthony V
 - Address
130 W. Second Street Suite 1500
Dayton, OH 45402
 - Phone
 -

Jacobs, Kristen
- Defendant

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DOB

Disposition

Disp Date

• Address
6230 Tipp Elizabeth Road
Troy, OH 45373

Alias

Party Attorney
 - Attorney
Napier, Morgan K
 - Address
110 North Main Street Suite 1600
Dayton, OH 45402
 - Phone
 -

Smallwood, Chelsea
- Defendant

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Party Role: Third Party Defendant

DOB

Disposition

Disp Date

• Address
228 Montego Ky
NOVATO, CA 94949

Alias

Party Attorney
 - Attorney
Graber, Anthony V
 - Address

- 130 W. Second Street Suite 1500
Dayton, OH 45402
- Phone
-

Nicodeumos, Olivia

- Defendant

- Party Role: Third Party Defendant

- DOB

- Disposition

- Disp Date

- Address

- 3191 Gearhart Road
Troy, OH 45373

[Alias](#)

Party Attorney

Smallwood, Chelsea

- Defendant

- DOB

- Disposition

- Disp Date

- Address

- 228 Montego Ky
Novato, CA 94949

[Alias](#)

Party Attorney

- Attorney
- Brandenburg, Margo S
- Address
- 250 East Fifth Street Suite 2200
Cincinnati, OH 45202
- Phone
-
- Attorney
- Graber, Anthony V
- Address
- 130 W. Second Street Suite 1500
Dayton, OH 45402
- Phone
-

Nicodeumus, Olivia

- Defendant

- DOB

- Disposition

- Dismissed

- Disp Date

- 02/19/2025

- Address

- 3191 Gearhart Rd.
Troy, OH 45373

[Alias](#)

Party Attorney

- Attorney
- Cloonan, Alexander W
- Address
- 2625 Commons Boulevard
Beavercreek, OH 45431
- Phone
-

Docket Information

Date	Docket Text	Image Avail.
10/24/2024	Complaint Filed 10/24/2024 04:26 PM Attorney: Sandner, Michael W Receipt: 191672 Date: 10/25/2024	 Image
10/24/2024	Request For Service By Certified Mail (1 to 4 defendants) 10/24/2024 04:26 PM Attorney: Sandner, Michael W	 Image
10/25/2024	Fees Paid Pursuant To Orc 2303.201(B) And Legal Research Fees Receipt: 191672 Date: 10/25/2024	
10/25/2024	Fees For Computerization Of Clerk's Office Receipt: 191672 Date: 10/25/2024	
10/25/2024	Special Projects Account Civil Petitions, Other Than Domestic Relations Receipt: 191672 Date: 10/25/2024	
10/25/2024	Civil Deposit Receipt: 191672 Date: 10/25/2024	
10/25/2024	Summons, Copy Of Complaint Issued	 Image
10/25/2024	Certified Mail Issued Issue Date: 10/25/2024	

<u>Date</u>	<u>Docket Text</u>	<u>Image Avail.</u>
	Service: Summons on Complaint Method: Cert Mail - Mailer Cost Per: 0.0000 Kristen Jacobs Home Address 6230 Tipp Elizabeth Road Troy, OH 45373 Tracking Number: 71902785905005312969	
10/25/2024	Postage Fees	
10/25/2024	Copies Issued. Complaint \$0.60, Service \$0.10	
11/04/2024	Service Failed Method : Cert Mail - Mailer Issued : 10/25/2024 Service : Summons on Complaint Served : Return : 11/04/2024 on : Jacobs, Kristen Signed By : Reason : UnSuccessful - Certified Mail Comment : Unclaimed Tracking #: 71902785905005312969	 Image
11/05/2024	Notice Of Failure Of Service Sent To Michael W. Sandner	 Image
11/08/2024	Praecipe For Service 11/08/2024 04:09 PM Attorney: Sandner, Michael W	 Image
11/12/2024	Summons, Copy Of	
11/12/2024	Regular Mail Issued Issue Date: 11/12/2024 Service: Summons on Complaint Method: Regular Mail Kristen Jacobs Home Address 6230 Tipp Elizabeth Road Troy, OH 45373 Tracking Number: 000004689	
11/12/2024	Postage Fees. Post \$0.97 Cert of Mail \$0.58	
11/13/2024	Certificate Of Mailing Sent To Kristen Jacobs Returned And Filed	 Image
12/06/2024	Defendant, Kristen Jacob's Motion To Compel Arbitration or Stay Pending Arbitration Filed With Certificate Of Service 12/06/2024 04:27 PM Attorney: Napier, Morgan K	 Image
12/06/2024	Answer And Counterclaim and Third Party Complaint of Defendant, Kristen Jacobs, Jury Demand Endorsed Hereon Filed 12/06/2024 04:49 PM Attorney: Napier, Morgan K Receipt: 192664 Date: 12/09/2024	
12/06/2024	Instructions For Service By Certified Mail Filed 12/06/2024 04:49 PM Attorney: Napier, Morgan K	 Image
12/09/2024	Certified Mail Issued Issue Date: 12/09/2024 Service: Summons on Cross Complaint Method: Cert Mail - Mailer Cost Per: 0.0000 Chelsea Smallwood Mailing Address 228 Montego Ky Novato, CA 94949 Tracking Number: 71902785905005315021	
12/09/2024	Certified Mail Issued Issue Date: 12/09/2024 Service: Summons on Cross Complaint Method: Cert Mail - Mailer Cost Per: 0.0000 Olivia Nicodeumus Mailing Address 3191 Gearhart Rd. Troy, OH 45373 Tracking Number: 71902785905005315038	

<u>Date</u>	<u>Docket Text</u>	<u>Image Avail.</u>
12/09/2024	Summons on Answer and Counterclaim and Third Party Complaint	 Image
12/09/2024	Postage Fees	 Image
12/09/2024	Copies Issued	
12/13/2024	Return Of Service Method : Cert Mail - Mailer Issued : 12/09/2024 Service : Summons on Cross Complaint Served : Return : 12/13/2024 on : Nicodemus, Olivia Signed By : Nicodemus Reason : Successful - Certified Mail Comment : Tracking #: 71902785905005315038	 Image
12/20/2024	Notice Of Appearance of Counsel for Third Party Defendant Olivia Nicodemus Filed With Certificate Of Service 12/20/2024 12:01 PM Attorney: Cloonan, Alexander W	 Image
12/20/2024	Plaintiff's Memorandum In Opposition to Defendant's Motion to Compel Arbitration or Stay Pending Arbitration Filed with Certificate of Service 12/20/2024 03:28 PM Attorney: Sandner, Michael W	 Image
12/20/2024	Notice Of Filing the Affidavit of Chelsea Smallwood filed with Certificate of Service 12/20/2024 03:28 PM Attorney: Sandner, Michael W	 Image
12/20/2024	Affidavit of Chelsea Smallwood Filed 12/20/2024 03:28 PM Attorney: Sandner, Michael W	 Image
12/27/2024	Reply In Support of Defendant, Kristen Jacobs' Motion to Compel Arbitration or Stay Pending Arbitration Filed With Certificate of Service 12/27/2024 04:23 PM Attorney: Napier, Morgan K	 Image
01/03/2025	Plaintiff, The Other Woman and the Wife, LLC., and Third-Party Defendant, Chelsea Smallwood's Answer to Defendant, Kristen Jacobs' Counterclaim Filed With Certificate of Service 01/03/2025 04:45 PM Attorney: Sandner, Michael W	 Image
01/10/2025	Stipulation to Extension of Time for Third Party Defendant Olivia Nicodemus to Answer or Otherwise Respond to Complain 01/10/2025 08:23 AM Attorney: Cloonan, Alexander W	 Image
01/22/2025	Second Stipulation to Extension of Time for Third Party Defendant, Olivia Nicodemus to Answer or Otherwise Respond to Third Party Complaint Filed With Certificate of Service 01/22/2025 04:08 PM Attorney: Cloonan, Alexander W	 Image
02/03/2025	Third Party Plaintiff Kristen Jacobs' Notice of Conditional Dismissal of Claims Against Olivia Nicodemus Only filed with Certificate of Service 02/03/2025 03:06 PM Attorney: Napier, Morgan K	 Image
02/18/2025	Motion for Substitution of Counsel Filed With Certificate of Service 02/18/2025 08:55 AM Attorney: Graber, Anthony V	 Image
02/19/2025	Notice of Dismissal of Third-Party Defendant, Olivia Nicodemus, Only With Prejudice Filed With Certificate of Service 02/19/2025 03:11 PM Attorney: Napier, Morgan K	 Image
02/20/2025	Proposed Order Granting Motion for Substitution of Counsel Judge: Wall, Stacy M	 Image
02/24/2025	Decision and Judgment Entry Denying Defendant's Motion To Compel Arbitration eFiling submission date: 02/24/2025 09:48 AM	 Image
02/24/2025	Unopposed Motion of Defendant and Counterclaim/Third-Party Plaintiff Kristen Jacobs for Leave to File Redacted Portions of the Third-Party Complaint filed with Certificate of Service and Exhibits 02/24/2025 03:09 PM Attorney: Napier, Morgan K	 Image
02/24/2025	Copies Issued 2 copies of Unopposed Motion 58 pages times 2	
02/25/2025	Order Granting Motion of Defendant and Counterclaim/Third Party Plaintiff Kristen Jacobs' for Leave to File Redacted Portions of the Third-Party Complaint	 Image

<u>Date</u>	<u>Docket Text</u>	<u>Image Avail.</u>
03/04/2025	Order of Appearance Filed 03/04/2025 11:17 AM Attorney: Brandenburg, Margo S	 Image
03/07/2025	Notice Of Filing Redacted Answer and Counterclaim and Third Party Complaint of Kristen Jacobs Filed With Certificate of Service 03/07/2025 12:04 PM Attorney: Napier, Morgan K	 Image
03/07/2025	Copies Issued	
05/28/2025	Scheduling Order 05/28/2025 09:42 PM	 Image
05/28/2025	Final Pre-Trial Conference set for 5/15/26 @ 9:00am. 05/28/2025 09:42 PM	 Image
05/28/2025	Notice of Settlement Conference set for 5/1/26 @ 9:30am. 05/28/2025 09:42 PM	 Image
05/28/2025	Trial Procedures Order 05/28/2025 09:42 PM	 Image
05/29/2025	Judges Orders and Settlement/Conference dates Issued Regular Mail To Morgan Napier, Margo Brandenburg, and Anthony Graber	
06/13/2025	Entry/Proposed Order Submitted w/o Motion through eFiling 06/13/2025 01:07 PM Attorney: Graber, Anthony V	
06/17/2025	Stipulated Protective Order Judge: Wall, Stacy M	 Image
09/18/2025	Kristen Jacobs' Notice Of Service of Subpoenas on Olivia Nicodemus and Julie Von Tersch filed with Certificate of Service 09/18/2025 04:40 PM Attorney: Napier, Morgan K	 Image
09/22/2025	Copies Issued for Notice of Service of Subpoenas (137 pages - plus 3 pages to Judge did not include exhibits) 140 pages	
09/25/2025	Joint Motion For Extension Of the Deadline for the Plaintiffs to Disclose Experts and to Exchange Expert Reports Filed 09/25/2025 08:37 AM Attorney: Napier, Morgan K	 Image
09/25/2025	Order Granting Joint Motion for Extension of the Deadline for the Plaintiffs to Disclose Experts and to Exchange Expert Reports Judge: Wall, Stacy M	 Image

Service Records

<u>Issue Date</u>	<u>Party Served</u>	<u>Tracking</u>	<u>Method</u>	<u>Status</u>	<u>Service Date</u>
12/09/2024	Nicodemus, Olivia 3191 Gearhart Rd. Troy, OH 45373	71902785905005315038	Certified Mail	Successful - Certified Mail	12/13/2024
12/09/2024	Smallwood, Chelsea 228 Montego Ky Novato, CA 94949	71902785905005315021	Certified Mail		
11/12/2024	Jacobs, Kristen 6230 Tipp Elizabeth Road Troy, OH 45373	000004689	Regular Mail		
10/25/2024	Jacobs, Kristen 6230 Tipp Elizabeth Road Troy, OH 45373	71902785905005312969	Certified Mail	UnSuccessful - Certified Mail	

Events

<u>Date</u>	<u>Type</u>	<u>Event Judge</u>	<u>Result</u>
05/01/2026 09:30 AM	Settlement Conference	Wall, Stacy M	
05/15/2026 09:00 AM	Final Pretrial Conference	Wall, Stacy M	
06/02/2026 09:00 AM	Jury Trial	Wall, Stacy M	

<u>Date</u>	<u>Type</u>	<u>Event Judge</u>	<u>Result</u>